BestCV Terms and Conditions

Licence terms for BestCV, a recruiting application for Microsoft Power Platform

Document	Terms and Conditions
Product	BestCV, a recruiting application for Microsoft Power Platform
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1. About these terms

These Terms and Conditions (the "Terms") apply to the Customer's access to and use of BestCV, a recruiting application for Microsoft Power Platform provided by SRIQ Corporation (Pvt) Limited, No 45 1/1, Layard's Road, Colombo 05, Sri Lanka ("SRIQ", "we", "us" or "our").

By installing, accessing or using BestCV, the Customer agrees to these Terms. A person who accepts these Terms for a company or other organisation confirms that they have the authority to bind that organisation. If the Customer does not agree to these Terms, it must not install or use BestCV.

2. Definitions

- **"BestCV"** means the BestCV Power Platform solution, its code apps, flows, tables, documentation and any updates we make available.
- **"Customer"** means the company or organization that acquires, installs or uses BestCV, and "Users" are the people the Customer allows to use it.
- **"Customer Data"** means all data that the Customer or its Users enter into, upload to or create with BestCV, including job requests, job posts, candidate CVs, candidate personal data, scores and interview records.
- **"Subscription Agreement"** means the signed agreement or order between the Customer and SRIQ that sets out the licence quantity, subscription term and fees for BestCV.
- **"Microsoft Marketplace"** means the Microsoft online storefront (including Microsoft AppSource) through which BestCV is listed.

3. Relationship with Microsoft and Microsoft Marketplace

BestCV is listed on Microsoft Marketplace by SRIQ as the publisher. These Terms are the publisher terms for BestCV and form an agreement between the Customer and SRIQ only.

- Microsoft is not a party to these Terms and is not responsible for BestCV, its support, or any information or services we provide.
- The Customer's use of Microsoft Marketplace itself is governed by the Microsoft Marketplace Terms of Use and the Customer's agreement with Microsoft. These Terms do not change those terms.
- When the Customer acquires or uses BestCV through Microsoft Marketplace, Microsoft may share the Customer's contact information, transaction details and usage information with us. We handle that information as described in our privacy policy.
- Microsoft does not license any SRIQ intellectual property to the Customer. The licence to BestCV is granted by SRIQ under these Terms.

4. The service

BestCV helps a Customer manage job requests and job posts, receive candidate CVs, score and summarise CVs with artificial intelligence (AI), and track candidates and interviews. BestCV runs

inside the Customer's own Microsoft Power Platform environment and uses AI services that the Customer provides.

We may improve, change, add or remove features of BestCV at any time. The Customer is responsible for deciding whether BestCV is suitable for its needs before acquiring it.

5. Licence

Subject to these Terms and payment of the applicable fees, we grant the Customer a non-exclusive, non-transferable, non-sublicensable licence to install and use BestCV during the subscription term for its own internal recruiting purposes.

BestCV is offered on a "bring your own licence" basis. A valid company licence key issued by SRIQ under a Subscription Agreement is required to use BestCV. The Customer is responsible for making sure it holds sufficient rights for the number of Users and environments in which it uses BestCV.

We reserve all rights not expressly granted in these Terms.

6. Restrictions

Except to the extent the law expressly permits it, the Customer must not, and must not allow anyone else to:

- copy, modify, translate or create derivative works of BestCV, other than configuration that BestCV is designed to allow;
- sell, resell, rent, lease, sublicense, distribute or otherwise make BestCV available to any third party;
- reverse engineer, decompile or disassemble BestCV, or remove or bypass its licence-key or security controls;
- share a licence key outside the Customer's organisation or use one licence key beyond its licensed scope;
- use BestCV in breach of any law, including employment, anti-discrimination, data protection and AI laws; or
- use BestCV to build a competing product.

7. Customer responsibilities

BestCV runs in the Customer's own environment, on the Customer's own Microsoft and Azure services, and is operated by the Customer's own Users. For that reason, the Customer is solely responsible for how BestCV is set up and used, and for the results of that use. In particular, the Customer is responsible for:

- enabling code apps in its Power Platform environment and holding the Microsoft Power Apps and other Microsoft licences that its Users need;
- setting up, paying for and securing its own Microsoft Azure OpenAI and Azure AI Document Intelligence resources, entering their endpoints and keys during setup, and all usage costs those services incur;

- assigning the BestCV security roles correctly and managing who has access to BestCV;
- keeping licence keys, service keys and credentials confidential, and any loss or misuse that results if they are exposed;
- the accuracy, legality and quality of all Customer Data, and having a lawful basis, and any required notice or consent, to collect and process candidates' personal data;
- backing up its Customer Data and its Microsoft environment;
- testing BestCV and each update before using it in production;
- complying with all laws that apply to its recruiting, including employment, anti-discrimination, data protection and AI laws; and
- all acts and omissions of its Users, as if they were the Customer's own.

8. Fees and payment

Fees, billing and payment terms for BestCV are set out in the Subscription Agreement. Microsoft does not bill or collect payment for BestCV. The Customer is responsible for all taxes on the fees, other than taxes on our income.

The Customer is separately responsible for the fees of the Microsoft products and Azure services it uses with BestCV.

Refunds: if the Customer cancels within 14 days of its first purchase of BestCV, we will refund the fees paid for that first purchase in full. To request a refund, the Customer must email us within that period. After the 14 days, and for any renewal, additional licences or later purchase, all fees are final and non-refundable, except where the law requires otherwise.

If the Customer does not pay fees when due, we may suspend the licence key until payment is received.

9. AI features and output

BestCV uses AI to produce CV scores, summaries, job descriptions, images and similar content ("AI Output"). AI Output is a suggestion only and may be inaccurate, incomplete or biased.

- The Customer must have a person review AI Output before relying on it. The Customer makes every hiring decision, and BestCV does not make automated decisions about candidates.
- The Customer is solely responsible for its use of AI Output and for every decision it makes using BestCV. We are not responsible for any hiring decision, or for any claim by a candidate or other person arising from it.
- The Customer must not use BestCV to treat candidates unfairly on the basis of protected characteristics, and must follow all laws on the use of AI in recruiting that apply to it, including any duty to inform candidates.
- AI processing is performed by the Customer's own Azure services under the Customer's agreement with Microsoft.

10. Customer Data and privacy

The Customer owns its Customer Data. Customer Data is stored in the Customer's own Microsoft environment and is processed by the Customer's own Microsoft and Azure services. SRIQ does not receive or store Customer Data, except where the Customer chooses to share it with us, for example in a support request. Because we do not hold Customer Data, the Customer is responsible for its security, retention, deletion and backup, and we are not responsible for any loss, corruption or disclosure of it.

The Customer is the controller of candidate personal data processed in BestCV. Where we process personal data on the Customer's behalf, we will do so only on the Customer's instructions and under a data processing agreement where the law requires one.

Our privacy policy at https://sriqcorp.com/bestcv/privacy explains what personal data we handle, including any licence-key check we run.

11. Third-party services

BestCV works with Microsoft Power Platform, Microsoft Dataverse, Microsoft Azure, Microsoft Outlook and LinkedIn. The Customer's use of those services is governed by their own terms and privacy policies. We are not responsible for third-party services, their availability, or changes to them that affect BestCV.

12. Intellectual property and feedback

SRIQ and its licensors own all rights in BestCV, including its design, code, documentation, names and logos. These Terms do not transfer ownership of any intellectual property to the Customer.

If the Customer gives us suggestions or feedback about BestCV, we may use it without restriction or payment.

13. Confidentiality

Each party must keep the other party's non-public information that it receives in connection with BestCV confidential, use it only for the purpose of these Terms, and protect it with reasonable care. This duty does not apply to information that is public, already known to the receiving party, independently developed, or required to be disclosed by law.

14. Support and updates

Support is available at https://sriqcorp.com/bestcv/support or by email at connect@sriqcorp.com. We will use reasonable efforts to respond to support requests, but we do not guarantee any response or resolution time unless the Subscription Agreement says otherwise. We may release updates to BestCV, and the Customer is responsible for installing and testing them in its environments.

15. No warranties

The Customer confirms that it has the authority to enter into these Terms and that it has evaluated BestCV and decided it is suitable for its needs.

TO THE EXTENT THE LAW ALLOWS, BESTCV, AI OUTPUT, DOCUMENTATION AND SUPPORT ARE PROVIDED "AS IS", "WITH ALL FAULTS" AND "AS AVAILABLE", AND THE CUSTOMER USES THEM AT ITS OWN RISK. WE GIVE NO WARRANTIES, GUARANTEES OR CONDITIONS OF ANY KIND, WHETHER EXPRESS OR IMPLIED, INCLUDING WARRANTIES OF MERCHANTABILITY, SATISFACTORY QUALITY, FITNESS FOR A PARTICULAR PURPOSE AND NON-INFRINGEMENT. WE DO NOT WARRANT THAT BESTCV WILL BE UNINTERRUPTED, SECURE OR ERROR-FREE, THAT IT WILL WORK WITH ANY THIRD-PARTY SERVICE, OR THAT AI OUTPUT WILL BE ACCURATE OR UNBIASED.

16. Limitation of liability

TO THE EXTENT THE LAW ALLOWS:

- our total liability arising out of or relating to these Terms and BestCV, for all claims together and whatever the legal basis, is limited to USD 100 (one hundred United States dollars);
- we are not liable for any indirect, incidental, special, punitive or consequential loss, or for any loss of profit, revenue, data, goodwill or business, even if we were advised of the possibility of that loss; and
- we are not liable for any loss caused by hiring decisions, AI Output, Customer Data, third-party services, Azure costs, exposed keys or credentials, or the Customer's failure to follow these Terms.

These limits apply even if a remedy fails of its essential purpose. Nothing in these Terms limits liability for death or personal injury caused by negligence, for fraud, or for any other liability that cannot be limited by law.

17. Indemnity

The Customer will defend, indemnify and hold harmless SRIQ, its directors, employees and agents against all claims, losses, damages, fines, costs and expenses (including reasonable legal fees) arising out of or relating to:

- the Customer's Customer Data, including candidate personal data;
- the Customer's hiring decisions and its use of AI Output;
- the Customer's use of BestCV, third-party services or Azure services; or
- any breach of these Terms or of the law by the Customer or its Users.

18. Term, suspension and termination

These Terms apply for as long as the Customer uses BestCV or holds a valid licence under the Subscription Agreement.

- The Customer may stop using BestCV at any time. Ending use does not entitle the Customer to a refund, except under the 14-day refund rule in the Fees and payment section.
- We may suspend or end the Customer's licence key immediately, with notice, if the Customer breaches these Terms, does not pay fees when due, or uses BestCV in a way that creates a security, legal or reputational risk. No refund is due in that case.

- When these Terms end, the licence ends, and the Customer must stop using BestCV and uninstall it. The Customer may export its Customer Data from its own Microsoft environment at any time.
- Sections that by their nature should continue, including restrictions, intellectual property, confidentiality, disclaimers, limitation of liability, indemnity and governing law, survive termination.

19. Export and sanctions

The Customer must comply with all export control and sanctions laws that apply to its use of BestCV and the Microsoft services it uses with BestCV.

20. Changes to these Terms

We may update these Terms from time to time. We will give the Customer reasonable notice of material changes, and the updated Terms apply from the date shown at the top. If the Customer continues to use BestCV after that date, it accepts the updated Terms. If the Customer does not agree, it must stop using BestCV.

21. Governing law and disputes

These Terms are governed by the laws of Sri Lanka. The parties will first try in good faith to resolve any dispute through discussion. If the dispute is not resolved within 30 days, the courts of Colombo, Sri Lanka have exclusive jurisdiction.

22. General

- **Order of precedence:** if these Terms conflict with a signed Subscription Agreement, the Subscription Agreement controls.
- **Entire agreement:** these Terms, the Subscription Agreement and our privacy policy are the whole agreement between the parties about BestCV.
- **Assignment:** the Customer may not assign these Terms without our written consent. We may assign them to an affiliate or a successor of our business.
- **Force majeure:** neither party is liable for delays caused by events beyond its reasonable control.
- **Severability and waiver:** if any part of these Terms is unenforceable, the rest remains in effect. Failing to enforce a term is not a waiver of it.
- **Notices:** notices to us must be sent to the email or postal address below.

23. Contact

SRIQ Corporation (Pvt) Limited

No 45 1/1, Layard's Road, Colombo 05, Sri Lanka

Email: connect@sriqcorp.com

Website: https://sriqcorp.com